

AIR INDIA LIMITED

CONDITIONS OF CARRIAGE FOR PASSENGERS, BAGGAGE AND CARGO

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Article 1 – DEFINITIONS

“AGREED STOPPING PLACES” means those places, except the place of departure and the place of destination, set forth in the Ticket or shown in Carrier’s timetables as scheduled stopping places on the Passenger’s route.

“BAGGAGE” means such articles, effects and other personal property of the Passenger as are necessary or appropriate for wear, use, comfort or convenience in connection with the trip and such other items as can be conveniently carried with the Passenger on such trip and are accepted by the Carrier for carriage. Unless otherwise specified, it includes both Checked and Unchecked Baggage of the Passenger.

“BAGGAGE CHECK” means those portions of the Ticket which relate to the carriage of the Passenger’s Checked Baggage.

“BAGGAGE IDENTIFICATION TAG” means a document issued by the Carrier solely for identification of Checked Baggage.

“CARRIER” includes the air carrier issuing the Ticket and all air carriers that carry or undertake to carry the Passenger and/or the Passenger’s Baggage hereunder.

“CARRIER’S REGULATIONS” means rules, other than these Conditions, as may be laid down by the Carrier and for the time being in force, governing carriage of Passengers and/or Baggage, and shall include the Conditions of Contract as incorporated in the Ticket and any applicable tariffs in force.

“CHECKED BAGGAGE” means Baggage of which the Carrier takes sole custody and for which the Carrier has issued a Baggage Check.

“COMMERCIAL AGREEMENT” means an agreement, other than an agency agreement, made between Carriers and relating to the provision of their joint services for carriage of Passengers by air.

“CONJUNCTION TICKET” means a Ticket issued to a Passenger in conjunction with another Ticket which together constitute a single contract of carriage.

“DAMAGE” means death, injury, delay, loss or other damage arising during the course of carriage by air performed by the Carrier or during the course of any of the operations of embarking or disembarking.

“DAYS” means calendar days, including all seven days of the week, provided that, for the purpose of notification, the day upon which notice is dispatched shall not be counted; and that, for purposes of determining duration of validity, the day upon which the Ticket is issued, or flight commenced, shall not be counted.

“ELECTRONIC COUPONS” means electronic Flight Coupons or other value document held in the Carrier’s database.

“ELECTRONIC TICKET” means the Itinerary/Receipt issued by or on behalf of the Carrier, the Electronic Coupons and, if applicable, a boarding document.

“FLIGHT COUPON” means that portion of the Ticket that bears the notation “good for passage”, or, in the case of an Electronic Ticket, the Electronic Coupon, and indicates the particular places between which the Passenger is entitled to be carried.

“ITINERARY/RECEIPT” means a document or documents forming part of the Electronic Ticket which contains the information and notices required under the Convention or as otherwise required.

“MONTREAL CONVENTION” means the Convention for the Unification of Certain Rules relating to International Carriage by Air signed at Montreal on 28 May 1999.

“NON-INTERNATIONAL CARRIAGE” means carriage other than international carriage as defined in the Indian Carriage by Air Act, 1972, as amended from time to time.

“PASSENGER” means any person, except members of the crew, carried or to be carried in an aircraft with the consent of the Carrier.

“PASSENGER COUPON” or “PASSENGER RECEIPT” means that portion of the Ticket issued by or on behalf of the Carrier, which is so marked, and which ultimately is to be retained by the Passenger.

“PRINCIPAL AND PERMANENT RESIDENCE” means the one fixed and permanent abode of the Passenger. The nationality of the Passenger shall not be the determining factor.

“SPECIAL DRAWING RIGHTS” or “SDR” means Special Drawing Right as defined by the International Monetary Fund, to be converted into the national currency in accordance with the valuation applied by the International Monetary Fund.

“STOPOVER” means a deliberate interruption of a journey by the Passenger, at a point between the place of departure and the place of destination, which has been agreed to in advance by the Carrier.

“TICKET” means the document entitled “Passenger Ticket and Baggage Check”, or the “Electronic Ticket”, in each case issued by or on behalf of the Carrier, and includes the Conditions of Contract and notices and the Flight and Passenger Coupon contained therein.

“UNCHECKED BAGGAGE” means any Baggage of the Passenger other than Checked Baggage.

“WARSAW CONVENTION” means whichever of the following instruments is applicable to the contract of carriage as determined by the routing: the Convention for the Unification of Certain Rules Relating to International Carriage by Air, signed at Warsaw, 12 October 1929; that Convention as amended at The Hague on 28 September 1955; or that Convention as amended at The Hague 1955 and by Montreal Protocol No. 1, 2, 3 or 4 (1975), as the case may be.

Article 2 – APPLICABILITY

2.1 GENERAL

2.1.1 Except as provided in 2.2 to 2.5, these Conditions of Carriage apply to all carriage by air, whether international carriage or carriage which is not international, of Passengers, Baggage, and cargo performed by the Carrier for reward.

2.1.2 These Conditions also apply to gratuitous and reduced fare carriage, except to the extent that the Carrier has provided otherwise in its Regulations or in the relevant contracts, passes or Tickets.

2.1.3 In regard to carriage by air which is international, the rules and limitations relating to liability under the Montreal and/or Warsaw Convention, as embodied in the Indian Carriage by Air Act, 1972, as amended vide Act No. 28 of 2009 dated 20 March 2009, and further amended by Notification No. S.O. 987(E) dated 5 March 2020, shall apply.

2.1.4 In regard to carriage by air which is not international, the rules and limitations relating to liability as specified by Notifications issued from time to time under Section 8 of the Indian Carriage by Air Act, 1972, shall apply.

2.1.5 In regard to carriage by air, both international and domestic, the rules and limitations relating to liability as specified in the Civil Aviation Requirements: Section 3, Series M, Part IV dated 6 August 2010 (as amended from time to time), issued under Section 4 of the Aircraft Act, 1934, shall apply.

2.2 CARRIAGE TO/FROM CANADA

These Conditions apply to carriage between places in Canada or between a place in Canada and any place outside thereof, only to the extent they are incorporated in tariffs in force in Canada.

2.3 CHARTERS

If carriage is performed pursuant to a charter agreement, these Conditions apply only to the extent they are incorporated by reference by the terms of the charter agreement and the charter Ticket.

2.4 OVERRIDING LAW

To the extent that any provision contained or referred to herein is contrary to anything contained in the Convention, where applicable, and any applicable laws, government regulations, orders or requirements that cannot be waived by agreement of the parties, such provision shall not apply. The invalidity of any provision shall not affect the validity of any other provision.

2.5 CONDITIONS PREVAIL OVER REGULATIONS

Except as provided herein, in the event of inconsistency between these Conditions and the Carrier's Regulations, these Conditions shall prevail, except where tariffs in force in the United States or Canada apply, in which case the tariffs shall prevail.

Article 3 – TICKETS

3.1 TICKET PRIMA FACIE EVIDENCE OF CONTRACT

3.1.1 The Ticket constitutes prima facie evidence of the contract of carriage between the Carrier and the Passenger named on the Ticket. The Carrier will provide carriage only to a Passenger holding such Ticket, or holding, as proof of payment or part payment, any other Carrier document issued by the Carrier or its authorised agent. The Ticket is and remains at all times the property of the issuing Carrier. The Conditions of Contract contained in the Ticket are a summary of some of the provisions of these Conditions of Carriage.

3.2 PERIOD OF VALIDITY

A Ticket is valid for carriage for one year from the date of commencement of travel, or, if no portion of the Ticket is used, from the date of issue thereof, except as otherwise provided in the Ticket, these Conditions or the Carrier's Regulations.

3.2.1 Extension of Validity

3.2.1.1 If a Passenger is prevented from travelling within the period of validity of the Ticket because the Carrier:

- cancels the flight on which the Passenger holds a reservation;
- omits a scheduled stop, being the Passenger's place of departure, place of destination or a Stopover;
- fails to operate a flight reasonably according to schedule;
- causes the Passenger to miss a connection;
- substitutes a different class of service; or
- is unable to provide previously confirmed space,

the validity of such Passenger's Ticket will be extended until the Carrier's first flight on which space is available in the class of service for which the fare has been paid.

3.2.1.2 When a Passenger holding a Ticket is prevented from travelling within the period of validity of the Ticket because at the time such Passenger requests reservation the Carrier is unable to provide space on the flight, the validity of such Passenger's Ticket will be extended in accordance with the Carrier's Regulations.

3.2.1.3 When a Passenger, after having commenced his or her journey, is prevented from travelling within the period of validity of the Ticket by reason of illness, the Carrier may extend (provided such extension is not precluded by the Carrier's Regulations applicable to the fare paid by the Passenger) the period of validity of such Passenger's Ticket until the date when the Passenger becomes fit to travel according to a medical certificate, or until the Carrier's first flight after such date from the point where the journey is resumed on which space is available in the class of service for which the fare has been paid. When the Flight Coupons remaining in the Ticket involve one or more Stopovers, the validity of such Ticket, subject to the Carrier's Regulations, may be extended for not more than three months from the date shown on such certificate. In such circumstances, the Carrier may extend similarly the period of validity of Tickets of other members of the Passenger's immediate family accompanying an incapacitated Passenger.

3.2.1.4 In the event of the death of a Passenger en route, the Tickets of the persons accompanying the Passenger may be modified by waiving the minimum stay or extending the validity. In the event of a death in the immediate family of a Passenger who has commenced travel, the validity of the Passenger's Tickets and those of his or her immediate family accompanying the Passenger may be likewise modified. Any such modification shall be made upon receipt of a valid death certificate, and any such extension of validity shall not be for a period longer than forty-five (45) days from the date of the death.

3.3 FLIGHT COUPON SEQUENCE

3.3.1 The Carrier will honour Flight Coupons, or, in the case of an Electronic Ticket, an Electronic Coupon, only in the sequence from the place of departure as shown on the Ticket.

3.3.2 The Ticket may not be valid and the Carrier is not obligated to honour the Passenger's Ticket if the first or any prior Flight Coupon, or, in the case of an Electronic Ticket, an Electronic Coupon, on the same ticket has not been used and the Passenger proposes to commence his or her journey subsequently at any Stopover or agreed stopping place. This provision shall apply to all Tickets issued on an Air India (098) document, for domestic as well as international travel.

3.3.3 Each Flight Coupon, or, in the case of an Electronic Ticket, an Electronic Coupon, will be accepted for carriage in the class of service specified therein on the date and flight for which accommodation has been reserved.

3.3.4 When Flight Coupons, or, in the case of an Electronic Ticket, an Electronic Coupon, are issued without a reservation being specified thereon, space will be reserved on application subject to the conditions of the relevant fare and the availability of space on the flight applied for.

3.4 NAME AND ADDRESS OF CARRIER

The Carrier's name may be abbreviated in the Ticket. The Carrier's address shall be deemed to be the airport of departure shown opposite the first abbreviation of the Carrier's name in the "Carrier" box in the Ticket, or, in the case of an Electronic Ticket, as indicated for the first flight segment in the Itinerary/Receipt.

Article 4 – STOPOVERS

Stopovers may be permitted at Agreed Stopping Places subject to Government requirements and the Carrier's Regulations.

Article 5 – FARES AND CHARGES

5.1 GENERAL

Fares apply only for carriage from the airport at the point of origin to the airport at the point of destination. Fares do not include ground transport service between airports and between airports and town terminals, unless provided by the Carrier without additional charge.

5.2 APPLICABLE FARES

Applicable fares are those published by or on behalf of the Carrier or, if not so published, constructed in accordance with the Carrier's Regulations. Subject to Government requirement and the Carrier's Regulations, the applicable fare is the fare for the flight or flights in effect on the date of commencement of the carriage covered by the first Flight Coupon of the Ticket, or, in the case of an Electronic Ticket, as indicated for the first flight segment in the Itinerary/Receipt. When the amount that has been collected is not the applicable fare, the difference shall be paid by the Passenger or, as the case may be, refunded by the Carrier, in accordance with the Carrier's Regulations. The convenience fee is a non-refundable fee of INR 300 that is applied to all domestic bookings made via the Carrier's website, mobile

application and call centres. The fee applies on all modes of payment and is charged per customer per Ticket.

5.3 ROUTING

Unless otherwise provided in the Carrier's Regulations, fares apply only to routings published in connection therewith. If there is more than one routing at the same fare, the Passenger may specify the routing prior to the issue of the Ticket. If no routing is specified, the Carrier may determine the routing.

5.4 TAXES AND CHARGES

Any tax or charge imposed by Government or other authority, or by the operator of an airport, in respect of a Passenger or the use by a Passenger of any service or facilities, will be in addition to the published fares and charges, and shall be payable by the Passenger, except as otherwise provided in the Carrier's Regulations. The Passenger may be required to pay taxes or fees not already collected on the Ticket for any reason.

5.5 CURRENCY

Fares and charges are payable in any currency acceptable to the Carrier. When payment is made in a currency other than the currency in which the fare is published, such payment will be made at the rate of exchange established in accordance with the Carrier's Regulations.

Article 6 – RESERVATIONS

6.1 RESERVATION REQUIREMENTS

6.1.1 Reservations are not confirmed until recorded as accepted by the Carrier or its authorised agent.

6.1.2 As provided in the Carrier's Regulations, certain fares may have conditions which limit or exclude the Passenger's right to change or cancel reservations.

6.1.3 The Carrier provides a look-in option for its Passengers with respect to itineraries booked and ticketed on Air India documents. Under the look-in option, during the period of forty-eight (48) hours after booking the Ticket, the Passenger can cancel or amend the Ticket without any additional charges, except for the normal prevailing fare and any government-imposed taxes and charges for the revised flight for which the Ticket is sought to be amended. The Passenger would accordingly be required to pay any increase in fare and government-imposed taxes and charges between the original booking and the revised booking. For all domestic bookings, and bookings for travel from the USA or Canada, this facility shall not be available for a flight whose departure is less than seven (7) days from the booking date. For any other bookings, including bookings for travel to the USA or Canada, this facility shall not be available for a flight whose departure is less than fifteen (15) days from the booking date. For all bookings where a change or cancellation is requested beyond forty-eight (48) hours of the initial booking time, this option is not available, and the Passenger has to pay the relevant cancellation fees for amendment.

Passengers may reach out to +91 116 932 9333 or +91 116 932 9999 for assistance.

6.2 TICKETING TIME LIMITS

If a Passenger has not paid for the Ticket (or made credit arrangements with the Carrier) prior to the specified ticketing time-limit, the Carrier may cancel the reservation.

6.3 PERSONAL DATA

The Passenger recognises that personal data has been given to the Carrier for the purposes of making a reservation for carriage and for obtaining ancillary services, facilitating immigration and entry requirements, and making available such data to government agencies who may share such personal data with other government agencies, which is beyond the control of the Carrier. For these purposes the Passenger authorises the Carrier to retain such data and to transmit it to its own offices, other carriers or the providers of such services, in whatever country they may be located. A detailed customer data privacy policy is available on the Carrier's website.

6.4 SEATING

The Carrier does not guarantee to provide any particular seat in the aircraft and the Passenger agrees to accept any seat that may be allotted on the flight in the class of service for which the Ticket has been issued. In the event of a Passenger's seat being involuntarily downgraded, in domestic carriage, to a class below that for which the Ticket was purchased, the Carrier shall reimburse the Passenger 75% of the cost of the Ticket, including applicable taxes. In the event of a Passenger's seat being involuntarily downgraded, in international carriage, to a class below that for which the Ticket was purchased, the Carrier shall reimburse the Passenger: (i) 30% of the cost of the Ticket including taxes for flights of 1,500 km or less; (ii) 50% of the cost of the Ticket including taxes for flights between 1,500 km and 3,500 km; or (iii) 75% of the cost of the Ticket including taxes for flights of more than 3,500 km.

6.5 SERVICE CHARGE WHEN SPACE NOT OCCUPIED

A service charge, in accordance with the Carrier's Regulations, may be payable by a Passenger who fails to use space for which a reservation has been made.

6.6 RECONFIRMATION OF RESERVATIONS

Onward or return reservations may be subject to the requirement to reconfirm the reservation in accordance with and within the time limits specified in the Carrier's Regulations. Failure to comply with any such requirement may result in cancellation of any onward or return reservations.

6.7 CANCELLATION OF ONWARD RESERVATIONS MADE BY CARRIER

If a Passenger does not use a reservation and fails to advise the Carrier, the Carrier may cancel or request cancellation of any onward or return reservations.

6.8 TICKET BOOKING VERIFICATION AT THE AIRPORT CHECK-IN LOCATION/RESERVATION COUNTER

6.8.1 In the case of Ticket bookings made (a) using a credit/debit card that does not belong to the travelling Passenger; or (b) using any travel agency, the bookings undergo verification by the Carrier's fraud detection tools. If the risk level of the Passenger's booking is found to be high, the Passenger may receive a verification call or email from the Carrier in relation to such payment. In some cases, the Passenger may also be required to verify the credit/debit card or travel agency booking at the airport

check-in location/reservation counter and provide photo identification and an undertaking and indemnity in favour of the Carrier.

6.8.2 Passengers are, therefore, required to carry the following documents at the time of travel:

- (a) Photo identity card: passport, driving licence, Aadhaar or PAN.
- (b) In case of direct bookings, credit/debit card details:
 - Photocopy of the front and back of the credit/debit card, self-attested by the credit/debit card holder. For security reasons, the credit/debit card holder must strike out the CVV, card expiry date and middle digits of the card number (excluding the first six and the last four digits) on the photocopy of the credit/debit card; or
 - Credit/debit card transaction statement that verifies the Passenger's awareness of the credit/debit card transaction.
- (c) In case of travel agency bookings, information related to Ticket purchase: name of the travel agency and an auto-generated email from the travel agency confirming the travel itinerary.

6.8.3 If a payment transaction is not verified in case of direct bookings, the Ticket will be cancelled, and the original transaction amount will be refunded to the credit/debit card. The Passenger will be required to pay the original Ticket fare again at the airport, failing which the Carrier reserves the right to deny boarding.

6.8.4 If a payment transaction is not verified in case of travel agency bookings, the Ticket will be cancelled, and the original transaction amount will be refunded to the travel agency. The Passenger will be required to buy a fresh Ticket directly from the Carrier at the current available Ticket fare, failing which the Carrier reserves the right to deny boarding.

Article 7 – CHECK-IN

The Passenger shall arrive at the Carrier's check-in location and boarding gate sufficiently in advance of flight departure to permit completion of any Government formalities and departure procedures, and in any event not later than the time that may be indicated by the Carrier. If the Passenger fails to arrive in time at the Carrier's check-in location or boarding gate, or appears improperly documented and not ready to travel, the Carrier may cancel the space reserved for the Passenger and will not delay the flight. The Carrier is not liable to the Passenger for loss or expense due to the Passenger's failure to comply with the provisions of this Article.

Article 8 – REFUSAL AND LIMITATION OF CARRIAGE

8.1 RIGHT TO REFUSE CARRIAGE

The Carrier may refuse carriage of any Passenger or Passenger's Baggage for reasons of safety or if, in the exercise of its reasonable discretion, the Carrier determines that:

- 8.1.1 such action is necessary in order to comply with any applicable laws, regulations or orders of any state or country to be flown from, into or over;

8.1.2 the conduct, age, or mental or physical state of the Passenger, including as a result of the effects of alcohol or drugs, is such as to:

8.1.2.1 require special assistance of the Carrier;

8.1.2.2 affect or be likely to affect the safety, health or comfort of other Passengers or crew members;

8.1.2.3 involve any hazard or risk to himself or herself or to other persons or to property; or

8.1.2.4 constitute unruly behaviour as defined under Article 12;

8.1.3 such action is necessary because the Passenger has failed to observe the instructions of the Carrier;

8.1.4 the Passenger has refused to submit to a security check;

8.1.5 the applicable fare or any charges or taxes payable have not been paid, or credit arrangements agreed between the Carrier and the Passenger (or the person paying for the Ticket) have not been complied with;

8.1.6 the Passenger does not appear to be properly documented or in possession of valid travel documents;

8.1.7 the Passenger has destroyed or has attempted to destroy his or her travel documents;

8.1.8 the Passenger has refused to present his or her travel documents, including but not limited to proof of sponsorship, when asked to do so by the airline staff or crew;

8.1.9 the Ticket presented by the Passenger:

8.1.9.1 has been acquired unlawfully or has been purchased from an entity other than the issuing Carrier or its authorised agent;

8.1.9.2 has been reported as being lost or stolen;

8.1.9.3 is a counterfeit Ticket;

8.1.9.4 has any Flight Coupon altered by anyone other than the Carrier or its authorised agent, or has been mutilated, and the Carrier reserves the right to retain such Ticket; or

8.1.9.5 the person presenting the Ticket cannot prove that he or she is the person named in the “Name of Passenger” box, and the Carrier reserves the right to retain such Ticket;

8.1.10 such person has engaged in conduct detrimental to the Carrier or its representatives, including but not limited to making false or defamatory statements or engaging in vexatious legal proceedings or harassment of any nature.

Such conduct shall constitute a violation of these Conditions of Carriage by such person. Any action by the Carrier pursuant to Article 8.1 shall be without prejudice to any other rights or remedies available to the Carrier.

8.2 LIMITATION ON CARRIAGE

Acceptance for carriage of unaccompanied children, incapacitated persons, pregnant women or persons with illness may be subject to prior arrangement with the Carrier, in accordance with the Carrier's Regulations.

8.3 NO LIABILITY FOR REFUSAL OF CARRIAGE

The Carrier will not be liable for any loss, damages, death or injury alleged to be due to the Carrier's refusal to carry the Passenger in the circumstances set out in Article 8.1.

8.4 DENIAL OF BOARDING

In exceptional circumstances, where the Carrier has more Passengers reporting for a particular flight than available seats (illustratively, substitution of aircraft, or in circumstances of cancellation of flight followed by merger of a prior or subsequent flight, owing to inclement weather), the Carrier may seek that volunteers relinquish seats in order to make seats available for other (booked) Passengers. The Carrier may offer certain benefits to such volunteers at the discretion of the Carrier. In such event, where Passengers are denied boarding due to more Passengers reporting for a particular flight than the seats available, the Carrier will not be liable to pay any compensation where the Carrier arranges an alternate flight scheduled to depart within one hour from the originally scheduled departure time. Should the Carrier be unable to arrange for an alternate flight departing within one hour from the originally scheduled time of departure, or where a Passenger booked on a connecting flight of the Carrier or another Carrier is delayed at the departure station on account of denied boarding and arrives at the final destination at least three hours later than the scheduled arrival time, a Passenger may claim compensation from the Carrier of the first leg, as under:

- Scheduled departure of alternate flight vis-à-vis initial reservation within 24 hours: compensation amount not exceeding 200% of the booked one-way base fare, i.e., base fare inclusive of fuel charges, subject to a maximum limit of Rs. 10,000;
- Scheduled departure of alternate flight vis-à-vis initial reservation beyond 24 hours: compensation amount not exceeding 400% of the booked one-way base fare, i.e., base fare inclusive of fuel charges, subject to a maximum limit of Rs. 20,000;
- Where the Passenger refuses the alternate flight: full refund of the Ticket plus 400% of the booked one-way base fare, i.e., base fare inclusive of fuel charges, subject to a maximum limit of Rs. 20,000.

8.5 VOLUNTARY DE-BOARDING BY PASSENGERS

8.5.1 Where a Passenger, after having boarded the aircraft, voluntarily requests to be de-boarded for any reason that is not permissible under Article 8.5.2, the Carrier may, in its discretion, permit such de-boarding. The Carrier shall be entitled to levy a de-boarding charge in such cases.

8.5.2 The Carrier may, in its sole discretion, waive the de-boarding charge where the Passenger's request to de-board arises from a cause that is unforeseeable, sudden and beyond the Passenger's control, including but not limited to:

- a medical emergency or sudden illness that prevents the Passenger from travelling;
- the death of a member of the Passenger's immediate family (namely spouse, child, parent, sibling, grandparent or grandchild);

The Carrier may require the Passenger to furnish appropriate documentary evidence in support of any waiver claimed under this Article 8.5.2.

8.5.3 The Carrier may require payment of the de-boarding charge as a pre-condition to permitting the Passenger to de-board the aircraft and/or exit the airport.

Article 9 – BAGGAGE

9.1 ITEMS UNACCEPTABLE AS BAGGAGE

9.1.1 The Passenger shall not include in his or her Baggage:

9.1.1.1 items which do not constitute Baggage, as defined in Article 1 of these Conditions of Carriage;

9.1.1.2 items which are likely to endanger the aircraft or persons or property on board the aircraft, such as those specified in the Dangerous Goods Regulations of the International Civil Aviation Organization (ICAO) and the International Air Transport Association (IATA), and in the Carrier's Regulations. Further information is hosted on the Carrier's website;

9.1.1.3 items the carriage of which is prohibited by the applicable laws, regulations or orders of any State to be flown from, to or over;

9.1.1.4 items which in the opinion of the Carrier are unsuitable for carriage by reason of their weight, size or character, such as fragile or perishable items;

9.1.1.5 live animals, except as provided for in 9.10.

9.1.2 Firearms and ammunition, other than for hunting and sporting purposes, are prohibited from carriage as Baggage. Firearms and ammunition for hunting and sporting purposes may be accepted as Checked Baggage in accordance with the Carrier's Regulations. Firearms must be unloaded with the safety catch on, and suitably packed. Carriage of ammunition is subject to the Dangerous Goods Regulations of the ICAO and the IATA.

9.1.3 The Passenger shall not include in Checked Baggage fragile or perishable items, money, jewellery, precious metals, silverware, negotiable papers, securities or other valuables, business documents, passports and other identification documents etc.

9.1.4 Weapons, such as antique firearms, swords, knives and similar items, may be accepted as Baggage, in accordance with the Carrier's Regulations.

9.1.5 If any items referred to in 9.1.1 or 9.1.2 are carried, whether or not they are prohibited from carriage as Baggage, the carriage thereof shall be subject to the charges, limitations of liability and other provisions of these Conditions applicable to the carriage of Baggage.

9.2 RIGHT TO REFUSE CARRIAGE

9.2.1 The Carrier may refuse carriage as Baggage of such items described in 9.1 as are prohibited from carriage as Baggage and may refuse further carriage of any such items on discovery thereof.

9.2.2 The Carrier may refuse to carry as Baggage any item because of its size, shape, weight or character.

9.2.3 Unless advance arrangements for its carriage have been made with the Carrier, the Carrier may carry on a later flight Baggage which is in excess of the applicable free allowance.

9.2.4 The Carrier may refuse to accept Baggage as Checked Baggage unless it is properly packed in suitcases or other suitable luggage or containers to ensure safe carriage with ordinary care in handling.

9.3 RIGHT OF SEARCH

For reasons of safety and security, the Carrier may request the Passenger to permit a search to be made of his or her person and his or her Baggage, and may search or have searched the Passenger's Baggage in his or her absence if the Passenger is not available, for the purpose of determining whether he or she is in possession of, or whether his or her Baggage contains, any item described in 9.1. If the Passenger is unwilling to comply with such request, the Carrier may refuse to carry the Passenger or Baggage.

9.4 CHECKED BAGGAGE

9.4.1 Upon delivery to the Carrier of Baggage to be checked, the Carrier shall take custody thereof and issue a Baggage Identification Tag for each piece of Checked Baggage.

9.4.2 If Baggage has no name, initials or other personal identification, the Passenger shall affix such identification to the Baggage prior to acceptance by the Carrier.

9.4.3 Checked Baggage will be carried on the same aircraft as the Passenger unless the Carrier decides that this is impracticable, in which case the Carrier will carry Checked Baggage on the next flight on which space is available.

9.5 FREE BAGGAGE ALLOWANCE

A Passenger may carry free of charge Baggage as specified, and subject to the conditions and limitations in the Carrier's Regulations.

9.6 EXCESS BAGGAGE

A Passenger shall pay charges for the carriage of Baggage in excess of the free Baggage allowance at the rate and in the manner prescribed in the Carrier's Regulations.

9.7 EXCESS VALUE DECLARATION AND CHARGE

9.7.1 If, in accordance with the Carrier's Regulations, the Carrier offers an excess valuation facility, a Passenger may declare a value for Checked Baggage in excess of the applicable liability limits. If the Passenger makes such a declaration, the Passenger shall pay any applicable charges.

9.7.2 The Carrier will refuse to accept an excess value declaration on Checked Baggage when a portion of the carriage is to be provided by another Carrier which does not offer the facility.

9.8 UNCHECKED BAGGAGE

9.8.1 Baggage which the Passenger carries on to the aircraft must fit under the seat in front of the Passenger or in an enclosed storage compartment in the cabin.

9.8.2 Items determined by the Carrier to be of excessive weight or size will not be permitted in the cabin.

9.8.3 Objects not suitable for transport in the cargo compartment (such as delicate musical instruments) will be accepted for transportation in the cabin compartment only if due notice has been given in advance and permission granted by the Carrier. The transport of such objects is chargeable separately.

9.9 COLLECTION AND DELIVERY OF BAGGAGE

9.9.1 The Passenger shall collect his or her Baggage as soon as it is available for collection at the place of destination or Stopover.

9.9.2 Only the bearer of the Baggage Check and identification tag delivered to the Passenger at the time the Baggage was checked is entitled to delivery of the Baggage. Failure to exhibit the Baggage Identification Tag shall not prevent delivery, provided the Baggage Check is produced and the Baggage is identified by other means.

9.9.3 If a person claiming the Baggage is unable to produce the Baggage Check and identify the Baggage by means of a Baggage Identification Tag, the Carrier will deliver the Baggage to such person only on condition that the right thereto is established to the Carrier's satisfaction. If required by the Carrier, such person shall furnish adequate security to indemnify the Carrier for any loss, Damage or expense which may be incurred by the Carrier as a result of such delivery.

9.9.4 Acceptance of Baggage by the bearer of the Baggage Check without complaint at the time of delivery is prima facie evidence that the Baggage has been delivered in good condition and in accordance with the contract of carriage.

9.10 ANIMALS

9.10.1 Animals, such as dogs, cats, household birds and other pets, when properly crated and accompanied by valid health and vaccination certificates, entry permits and other documents required by countries of entry or transit, will, with the advance agreement of the Carrier, be accepted for carriage, subject to the Carrier's Regulations.

9.10.2 If accepted as Baggage, the animal together with its container and food carried shall not be included in the free Baggage allowance of the Passenger but shall constitute excess Baggage, for which the Passenger shall pay the applicable rate.

9.10.3 Guide dogs accompanying sight-/hearing-impaired and physically handicapped Passengers, together with containers and food, will be carried free of charge in addition to the normal free Baggage allowance, subject to the Carrier's Regulations.

9.10.4 Acceptance for carriage of animals is subject to the condition that the Passenger assumes full responsibility for such animal. The Carrier shall not be liable for injury to, or loss, delay, sickness or death of, such animal in the event that it is refused entry into or passage through any country, state or territory.

Article 10 – SCHEDULES, CANCELLATION OF FLIGHTS

10.1 SCHEDULES

10.1.1 The flight times and durations shown in the Carrier's timetables or in the Passenger's Ticket may change between the date of publication or issue and the date of actual travel. The Carrier does not guarantee flight times and durations and they do not form part of the Passenger's contract of carriage with the Carrier.

10.1.2 In the event of operational reasons beyond the control of the Carrier, including but not limited to mechanical issues, weather conditions, air traffic control restrictions or any unforeseen circumstances, the Carrier reserves the right to substitute, without notice, an alternate carrier or aircraft type, and may alter or omit stopping places shown on the Ticket/eTicket/Itinerary/Receipt. The Carrier shall make reasonable efforts to notify the Passenger of such substitution but shall not be held liable for any delays or inconvenience arising out of such substitution. The Carrier shall ensure that the alternate carrier or substitute aircraft type meets all necessary safety and regulatory requirements. The Passenger agrees to accept such substitution and shall not be entitled to any compensation or refund as a result of such substitution.

10.1.3 The Carrier undertakes to use its best efforts to carry the Passenger and his or her Baggage with reasonable despatch and to adhere to published schedules in effect on the date of travel.

10.2 CANCELLATION, CHANGES OF SCHEDULE, ETC.

If due to circumstances beyond its control the Carrier cancels or delays a flight, is unable to provide previously confirmed space, fails to stop at the Passenger's Stopover or destination point, or causes the Passenger to miss a connecting flight on which the Passenger holds a reservation, the Carrier shall either:

10.2.1 carry the Passenger on another of its scheduled passenger services on which space is available; or

10.2.2 reroute the Passenger to the destination indicated on the Ticket or applicable portion thereof by its own scheduled services or the scheduled services of another Carrier, or by means of surface transportation. If the sum of the fare, excess Baggage charge and any applicable service charge for the revised routing is higher than the refund value of the Ticket or applicable portion thereof, the Carrier

shall require no additional fare or charge from the Passenger, and shall refund the difference if the fare and charges for the revised routing are lower; or

10.2.3 make a refund in accordance with the provisions of Article 11.

Except in the case of its acts or omissions done with intent to cause damage or recklessly and with knowledge that damage would probably result, the Carrier shall not be liable for errors or omissions in timetables or other published schedules, or for representations made by employees, agents or representatives of the Carrier as to the dates or times of departure or arrival or as to the operation of any flight.

Article 11 – REFUNDS

11.1 GENERAL

On failure by the Carrier to provide carriage in accordance with the contract of carriage, or where the Passenger requests a voluntary change of his or her arrangements, refund for an unused Ticket or portion thereof shall be made by the Carrier in accordance with this Article and with the Carrier's Regulations.

11.2 PERSON TO WHOM REFUND WILL BE MADE

11.2.1 Except as hereinafter provided in this Article, the Carrier shall be entitled to make refund either to the person named in the Ticket, or to the person who has paid for the Ticket upon presentation of satisfactory proof. In the event payment for the Ticket is made through a travel agent, refund shall normally be made through such travel agent.

11.2.2 If a Ticket has been paid for by a person other than the Passenger named in the Ticket, and the Carrier has indicated on the Ticket that there is a restriction on refund, the Carrier shall make a refund only to the person paying for the Ticket or to that person's order.

11.2.3 Except in the case of lost Tickets, refunds will only be made on surrender to the Carrier of the Passenger Coupon or Passenger Receipt and surrender of all unused Flight Coupons.

11.2.4 A refund made to anyone presenting the Passenger Coupon or Passenger Receipt and all unused Flight Coupons, and holding out as a person to whom refund may be made in terms of 11.2.2, shall be deemed a proper refund and shall discharge the Carrier from liability and any further claim for refund.

11.3 INVOLUNTARY REFUNDS

If the Carrier cancels a flight, fails to operate a flight reasonably according to schedule, fails to stop at a point to which the Passenger is destined or ticketed to stop over, is unable to provide previously confirmed space, or causes the Passenger to miss a connecting flight on which the Passenger holds a reservation, the amount of the refund shall be:

11.3.1 if no portion of the Ticket has been used, an amount equal to the fare paid;

11.3.2 if a portion of the Ticket has been used, the refund will be the higher of:

11.3.2.1 the one-way fare (less applicable discounts and charges) from the point of interruption to the destination or point of next Stopover; or

11.3.2.2 the difference between the fare paid and the fare for the transportation used.

11.3.3 In the event of a flight delay not exceeding six hours, the Carrier shall arrange for meals and refreshments during waiting time. In the event the Carrier fails to arrange for an alternate flight within six hours from the scheduled time of departure or previously revised departure time (communicated 24 hours prior to the original scheduled departure time), the Carrier shall be liable to a full refund of the Ticket to the Passenger, in the event of domestic carriage; however, in the case of international carriage, the Carrier shall not be liable to refund the value of the Ticket. Where the total delay exceeds 24 hours or beyond six hours for flights scheduled to depart between 8 p.m. and 3 a.m., the Carrier shall arrange for hotel accommodation (including transfers); provided, however, that the Carrier shall not be liable to pay any compensation or provide facilities where flights have been cancelled or delayed on account of force majeure events, i.e., extraordinary circumstance(s) beyond the control of the Carrier, the impact of which leads to the cancellation/delay of flight(s), and which could not have been avoided even if all reasonable measures had been taken by the Carrier. Such extraordinary circumstances may, in particular, occur due to political instability, natural disaster, civil war, insurrection, riot, flood, explosion, pandemic, epidemic, government regulation or order affecting the aircraft, strikes and labour disputes causing cessation, slowdown or interruption of work, or any other factors beyond the control of the Carrier. The Carrier is not liable to pay any compensation or provide facilities where cancellation or delay of flights are attributable to Air Traffic Control, meteorological conditions, security risks, or any other causes that are beyond the control of the Carrier affecting its ability to operate flights on schedule. Extraordinary circumstances shall be deemed to exist where the impact of an air traffic management decision in relation to a particular aircraft or several aircraft on a particular day gives rise to a long delay or delays, or any overnight delay, or the cancellation of one or more flights by that aircraft, and which could not be avoided even though the Carrier had taken all reasonable measures to avoid or overcome the impact of the relevant factor(s) and, therefore, the delays or cancellations.

11.3.4 In the event that, upon cancellation, an alternative flight is not accepted by the Passenger, or a connecting flight is caused to be missed owing to cancellation, then in addition to meals and refreshment during waiting time, and refund in consonance with sub-articles 11.3.1 or 11.3.2, compensation in the sum of: (a) Rs. 5,000 or booked one-way basic fare plus airline fuel charge, whichever is less, for flights having a block time of up to and including 1 hour; or (b) Rs. 7,500 or booked one-way basic fare plus airline fuel charge, whichever is less, for flights having a block time of up to and including 2 hours; or (c) Rs. 10,000 or booked one-way basic fare plus airline fuel charge, whichever is less, for flights having a block time of more than 2 hours. The Passenger shall not be eligible for compensation in the event inadequate contact information has been provided at the time of booking the Ticket; provided, however, that the Carrier shall not be liable to pay any compensation or provide facilities where flights have been cancelled or delayed on account of force majeure events, i.e., extraordinary circumstance(s) beyond the control of the Carrier, the impact of which leads to the cancellation/delay of flight(s), and which could not have been avoided even if all reasonable measures had been taken by the Carrier. Such extraordinary circumstances may, in particular, occur due to political instability, natural disaster, civil war, insurrection, riot, flood, explosion, pandemic, epidemic, government regulation or order affecting the aircraft, strikes and labour disputes causing cessation, slowdown or interruption of work, or any other factors that are beyond the control of the Carrier. The Carrier is not liable to pay any compensation or provide facilities where cancellation or delay of flights are attributable to Air Traffic Control, meteorological conditions, security risks, or any other causes beyond the control of the Carrier affecting

its ability to operate flights on schedule. Extraordinary circumstances shall be deemed to exist where the impact of an air traffic management decision in relation to a particular aircraft or several aircraft on a particular day gives rise to a long delay or delays, or any overnight delay, or the cancellation of one or more flights by that aircraft, and which could not be avoided even though the Carrier had taken all reasonable measures to avoid or overcome the impact of the relevant factor(s) and, therefore, the delays or cancellations.

11.4 VOLUNTARY REFUNDS

If the Passenger wishes a refund of his or her Ticket for reasons other than those set out in this Article, the amount of the refund shall be:

11.4.1 if a portion of the Ticket has been used, the refund will be an amount equal to the difference between the fare paid and the applicable fare for travel between the points for which the Ticket has been used, less any applicable service charges or cancellation fees.

11.5 REFUND ON LOST TICKET

11.5.1 If a Ticket or portion thereof is lost, refund will be made on proof of loss satisfactory to the Carrier and upon payment of any applicable service charge.

11.5.2 The person to whom the refund is made shall undertake, in such form as may be prescribed by the Carrier, to repay to the Carrier the amount refunded in the event and to the extent that the lost Ticket or portion thereof is used by any person, or that refund thereof is made to any person in possession of the Ticket.

11.6 RIGHT TO REFUSE REFUND

11.6.1 After expiry of the validity of the Ticket, the Carrier may refuse refund when application is made later than the time prescribed in the Carrier's Regulations.

11.6.2 The Carrier may refuse refund on a Ticket which has been presented to the Carrier or to Government officials of a country as evidence of intention to depart therefrom, unless the Passenger establishes to the Carrier's satisfaction permission to remain in the country and that the Passenger will depart therefrom by another Carrier or alternate means of transport.

11.7 CURRENCY

All refunds will be subject to Government laws, rules and regulations or orders of the country in which the Ticket was originally purchased and of the country in which the refund is being made. Subject to the foregoing, refunds will normally be made in the currency and in the country in which the Ticket was paid for. The Carrier shall be at liberty to offer refund in the following modes: cash (subject to availability), bank transfer, or, upon agreement by the Passenger in writing, travel vouchers.

11.8 BY WHOM TICKET REFUNDABLE

Voluntary refunds will be made only by the Carrier which originally issued the Ticket or by its agent, if so authorised.

Article 12 – CONDUCT ABOARD AIRCRAFT

12.1 If the holder of a Ticket issued by the Carrier conducts himself or herself at any time prior to or after issuance of a Ticket, including but not limited to pre-boarding or aboard the aircraft, in a manner that leads any person of the Carrier to apprehend that such holder of the Ticket may endanger the aircraft, or any person or property of the Carrier, or obstruct the crew or ground staff in the performance of their duties, or is likely to behave in a manner that is disruptive and/or unruly, the Carrier may take such measures as it deems reasonably necessary to prevent continuation of such conduct, including to decline boarding or require disembarkation, and to cancel the Ticket. Disruptive or unruly conduct includes, but is not limited to:

- (a) behaving in an unruly, unsafe or aggressive manner which is considered objectionable by the Carrier;
- (b) behaving in an unruly, unsafe or aggressive manner to which the airline staff or crew or other passengers may reasonably object;
- (c) failing to comply with any instructions or directions of the crew or ground staff, including but not limited to failing to cooperate or interfering with the crew member's duties, refusing to follow instructions to board or disembark the aircraft, instructions with respect to smoking, alcohol or drug consumption, security and safety, or use of electronic equipment;
- (d) verbal confrontation or physical assault with ground staff, crew members or other passengers or customers;
- (e) insulting the modesty of ground staff, crew members or other passengers or customers, uttering any word, making any sound or gesture, or exhibiting any object, intending that such word or sound will be heard, or that such gesture or object will be seen by others, or intruding and/or invading upon the privacy of ground staff, crew members or other passengers or customers;
- (f) assault or use of force on ground staff, crew members or other passengers or customers, intending to outrage or knowing it to be likely that it will thereby outrage the modesty of the ground staff, crew members or other passengers or customers;
- (g) committing the following acts of sexual harassment against ground staff, crew members or other passengers or customers:
 - (i) physically abusive behaviour, through means of contact and/or advances involving unwelcome and explicit sexual overtures, inappropriate touching, grabbing, etc.;
 - (ii) making sexually coloured remarks;
 - (iii) attempt to disrobe;
 - (iv) showing pornography; or
 - (v) demand or request for sexual favours;
- (h) behaving in a manner which seeks to cause other passengers to engage in or cooperate with unruly, unsafe or aggressive behaviour that may endanger the aircraft, or any person or property of the Carrier; or

- (i) behaving in a manner which causes or is likely to cause discomfort, distress, inconvenience, damage or injury to other passengers, ground staff, the crew or property.

12.2 The Passenger may be declined boarding, disembarked, refused onward carriage at any point or any further carriage in future, and may be prosecuted for the offences committed on board the aircraft and/or on ground. In such circumstances, the Carrier shall have no liability and the Passenger shall not be entitled to any refunds. Exceptionally disruptive passengers may be placed on the No-Fly list and banned from flying for a specified amount of time, as communicated to them, in accordance with law.

12.3 If, as a result of the Passenger's conduct of the type mentioned in Article 12.1, the Carrier decides, in the exercise of its reasonable discretion, to divert the aircraft for the purpose of offloading the Passenger, the Passenger shall pay all costs resulting from that diversion.

Article 13 – ARRANGEMENTS BY CARRIER

If, in the course of concluding the contract of carriage by air, the Carrier also agrees to make arrangements for the provision of additional services, the Carrier shall have no liability to the Passenger except for wilful negligence on its part in making such arrangements.

Article 14 – ADMINISTRATIVE FORMALITIES

14.1 GENERAL

The Passenger shall be solely responsible for complying with all laws, regulations, orders, demands and travel requirements of countries to be flown from, into or over, and with the Carrier's Regulations and instructions. The Carrier shall not be liable for any aid or information given by any agent or employee of the Carrier to any Passenger in connection with obtaining necessary documents or visas or complying with such laws, regulations, orders, demands and requirements, whether given in writing or otherwise, or for the consequences to any Passenger resulting from his or her failure to obtain such documents or visas or to comply with such laws, regulations, orders, demands, requirements, rules or instructions.

14.2 TRAVEL DOCUMENTS

The Passenger shall present all exit, entry, health and other documents required by laws, regulations, orders, demands or requirements of the countries concerned. The Carrier reserves the right to refuse carriage of any Passenger who has not complied with applicable laws, regulations, orders, demands or requirements, or whose documents do not appear to be in order.

14.3 REFUSAL OF ENTRY

The Passenger agrees to pay the applicable fare whenever the Carrier, on Government order, is required to return a Passenger to his or her point of origin or elsewhere, owing to the Passenger's inadmissibility into a country, whether of transit or of destination. The Carrier may apply to the payment of such fare any funds paid to the Carrier for unused carriage, or any funds of the Passenger in the possession of the Carrier. The fare collected for carriage to the point of refusal of entry or deportation will not be refunded by the Carrier.

14.4 PASSENGER RESPONSIBLE FOR FINES, DETENTION COSTS, ETC.

If the Carrier is required to pay or deposit any fine or penalty, or to incur any expenditure, by reason of the Passenger's failure to comply with laws, regulations, orders, demands and travel requirements of the countries concerned, or to produce the required documents, the Passenger shall on demand reimburse to the Carrier any amount so paid or deposited and any expenditure so incurred. The Carrier may use towards such expenditure any funds paid to the Carrier for unused carriage, or any funds of the Passenger in the possession of the Carrier.

14.5 CUSTOMS INSPECTION

If required, the Passenger shall attend inspection of his or her Baggage, checked or unchecked, by customs or other Government officials. The Carrier is not liable to the Passenger for any loss or Damage suffered by the Passenger through failure to comply with this requirement.

14.6 SECURITY INSPECTION

The Passenger shall submit to any security checks by Government or airport officials or by the Carrier.

Article 15 – SUCCESSIVE CARRIERS

Carriage to be performed by several successive Carriers under one Ticket, or under a Ticket and any Conjunction Ticket issued in connection therewith, is regarded as a single operation for the purposes of the Convention.

Article 16 – LIABILITY FOR DAMAGE

16.1 The Carrier shall be liable for damages sustained in case of death or bodily injury of a Passenger, upon condition only that the accident which caused the death or injury took place on board the aircraft, or in the course of any of the operations of embarking or disembarking.

16.2 The Carrier shall be liable for damages sustained in case of destruction or loss of, or of Damage to, Checked Baggage, upon condition only that the event which caused the destruction, loss or Damage took place on board the aircraft or during any period within which the Checked Baggage was in the charge of the Carrier.

16.3 All compensation shall be subject to the Airline Designator Code of Air India appearing in the carrier box of the Ticket for that flight or flight segment, and to the limits on compensation as provided under these Conditions of Carriage.

Article 17 – LIMITS OF COMPENSATION

17.1 DEATH OR BODILY INJURY TO PASSENGERS

17.1.1 For international carriage to which the Montreal Convention applies, the Carrier's liability in the case of death or bodily injury to Passengers will be limited up to a maximum of 128,821 SDRs, unless a higher monetary limit has been incorporated into the national laws of the country of the court seized of the case.

17.1.2 For international carriage to which the Warsaw Convention applies, the Carrier's liability in the case of death or bodily injury to Passengers will be limited up to a maximum of 125,000 Francs which, being a now invalid currency, shall be deemed to be the equivalent of 128,821 SDRs, unless the national laws of the country of the court seized of the case prescribe a different monetary equivalent.

17.1.3 For Non-International Carriage, the Carrier's liability in the case of death or bodily injury to Passengers will be limited to the sum of Twenty-Five Lakhs and Fifty Thousand Rupees, unless a higher monetary limit has been incorporated into law by the Government of India.

17.1.4 To the extent that damages under Articles 17.1.1, 17.1.2 and 17.1.3 may potentially exceed their respective stated limits, the Carrier shall not be liable for any sums in excess of those figures if the Carrier proves that the Damage (being the death or bodily injury) was not due to the negligence or other wrongful act or omission of the Carrier or its servants or agents, or that the Damage was solely due to the negligence or other wrongful act or omission of a third party.

17.1.5 The Carrier may be exonerated wholly or partly from liability if it proves that the Damage was caused by, or contributed to by, the negligence or other wrongful act or omission of the injured or deceased Passenger or the person claiming compensation.

17.2 DAMAGE TO BAGGAGE

17.2.1 The Carrier shall have no liability for Damage to Unchecked Baggage save to the extent that, in claims governed by the Montreal Convention, such Damage was caused by the Carrier's fault or the fault of its servants or agents.

17.2.2 For international carriage to which the Montreal Convention applies, the Carrier's limit of liability for Damage to Checked Baggage will be 1,288 SDRs, unless a higher monetary limit has been incorporated into the national laws of the country of the court seized of the case. The limits set out in this Article 17.2.2 shall not apply if the Passenger made a special declaration of value and paid the relevant fee, in which case the Carrier shall be liable to pay a sum not exceeding the declared sum, unless it proves that the declared sum is greater than the Passenger's actual interest in delivery at destination.

17.2.3 The Carrier's limit of liability as expressed in Article 17.2.2 may only be exceeded if it is proven that the Damage resulted from an act or omission of the Carrier, its servants or agents, done with intent to cause Damage or recklessly and with knowledge that Damage would probably result; provided that, in the case of such act or omission of a servant or agent, it is also proved that such servant or agent was acting within the scope of its employment.

17.2.4 For international carriage to which the Warsaw Convention applies, the Carrier's limit of liability for Damage to Checked Baggage will be 250 Francs per kilogram which, being a now invalid currency, shall be deemed to have the monetary equivalent of USD 20 per kilogram, unless the national laws of the country of the court seized of the case prescribe a different monetary equivalent. The limits set out in this Article 17.2.4 shall not apply if the Passenger made a special declaration of value and paid the relevant fee, in which case the Carrier shall be liable to pay a sum not exceeding the declared sum, unless it proves that the declared sum is greater than the Passenger's actual interest in delivery at destination.

17.2.5 For Non-International Carriage, the Carrier's limit of liability for Damage to Checked Baggage will be Rupees Twenty-Five Thousand, unless a higher monetary limit has been incorporated into law by the Government of India, or unless the Passenger made a special declaration of value and paid the relevant fee, in which case the Carrier shall be liable to pay a sum not exceeding the declared sum, unless it proves that the declared sum is greater than the Passenger's actual interest in delivery at destination.

17.2.6 The Carrier shall not be liable for normal wear and tear to Checked Baggage under Articles 17.2.2, 17.2.4 and 17.2.5, where the Carrier proves that such wear and tear includes, without limitation:

- broken wheels or base;
- loss of external locks or security straps;
- damage to any protruding part of the Baggage;
- damage resulting from over-packing;
- damage to retractable luggage handles;
- scratches, torn zippers, straps and handles, scuffing, denting, soiling or manufacturing defects;
or
- damage to perishable or fragile baggage.

17.3 DELAYED OR LOST BAGGAGE

17.3.1 For international carriage to which the Montreal Convention applies, the Carrier's liability for delayed or lost Checked Baggage is limited to an amount of up to 1,288 SDRs, unless a higher monetary limit has been incorporated into the national laws of the country of the court seized of the case.

17.3.2 The limit of liability expressed in Article 17.3.1 above may be exceeded where the Passenger proves that the delay or loss resulted from an act or omission by the Carrier or its servants or agents, carried out either with the intention of causing delay or loss, or recklessly with knowledge that either would probably result, and the Passenger proves that the Carrier's employees, servants or agents responsible for the act or omission were acting within the scope of their employment.

17.3.3 For international carriage to which the Warsaw Convention applies, the Carrier's liability for delayed or lost Checked Baggage is limited to 250 Francs per kilogram which, being a now invalid currency, shall be deemed to have the monetary equivalent of USD 20 per kilogram, unless the national laws of the country of the court seized of the case prescribe a different monetary equivalent. The limits set out in this Article 17.3.3 shall not apply if the Passenger made a special declaration of value and paid the relevant fee, in which case the Carrier shall be liable to pay a sum not exceeding the declared sum, unless it proves that the declared sum is greater than the Passenger's actual interest in delivery at destination.

17.3.4 In Non-International Carriage, the Carrier's limit of liability for delayed or lost Checked Baggage will be Rupees Twenty-Five Thousand, unless a higher monetary limit has been incorporated into law by the Government of India, or unless the Passenger made a special declaration of value and paid the relevant fee, in which case the Carrier shall be liable to pay a sum not exceeding the declared

sum, unless it proves that the declared sum is greater than the Passenger's actual interest in delivery at destination.

17.4 DELAY TO PASSENGERS

17.4.1 For international carriage to which the Montreal Convention applies, the Carrier's liability for delay to Passengers is limited to an amount of 5,346 SDRs, unless a higher monetary limit has been incorporated into the national laws of the country of the court seized of the case. The Carrier's liability shall be excluded if it can prove that it, its servants and agents, took all reasonable measures to avoid the Damage, or that it was impossible for them or their agents to take such measures.

17.4.2 The limit of liability expressed in Article 17.4.1 above may be exceeded where the Passenger proves that the delay or loss resulted from an act or omission by the Carrier or its servants or agents, carried out either with the intention of causing delay or loss, or recklessly with knowledge that either would probably result, and the Passenger proves that the Carrier's employees, servants or agents responsible for the act or omission were acting within the scope of their employment.

17.4.3 For international carriage to which the Warsaw Convention applies, the Carrier shall be liable for recoverable and proven losses incurred by a delayed Passenger, unless the Carrier proves that it, its servants and agents, took all reasonable measures to avoid the Damage, or that it was impossible for them or their servants or agents to take such measures.

17.4.4 In Non-International Carriage, the Carrier's liability for delay to Passengers shall be limited to an amount of Rupees One Lakh, unless a higher monetary limit has been incorporated into law by the Government of India. The Carrier's liability shall be excluded if it can prove that it took all reasonable measures to avoid the Damage, or that it was impossible for it or its servants or agents to take such measures.

17.5 DAMAGED OR DELAYED CARGO

17.5.1 For international carriage to which the Montreal Convention applies, the Carrier's limit of liability for lost, damaged or delayed cargo shall be 22 SDRs per kilogram, unless a greater per kilogram monetary limit has been incorporated into the national laws of the country of the court seized of the case, or unless a special declaration of value has been made and the relevant fee paid.

17.5.2 For international carriage to which the Warsaw Convention applies, the Carrier's limit of liability for lost, damaged or delayed cargo shall be 250 Francs per kilogram which, being a now invalid currency, shall be deemed to have the monetary equivalent of USD 20 per kilogram, unless the national laws of the country of the court seized of the case prescribe a different monetary equivalent. The limits set out in this Article 17.5.2 shall not apply if a special declaration of value has been made and the relevant fee paid.

17.5.3 For international carriage to which neither the Montreal Convention nor the Warsaw Convention applies, the Carrier's limit of liability for lost, damaged or delayed cargo shall be 22 SDRs per kilogram, unless a special declaration of value has been made and the relevant fee paid.

17.5.4 In Non-International Carriage, the Carrier's limit of liability shall not exceed Rupees Four Hundred and Fifty per kilogram of cargo damaged, lost or delayed; all claims shall be subject to proof of value. If the Shipper has made a special declaration of value and paid the necessary fee, then the

Carrier's limit of liability may exceed the Rupees Four Hundred and Fifty per kilogram limit of liability, if the Shipper, Consignee or other claimant proves the declared value of the consignment above this threshold.

17.5.5 In the case of any conflict between this Article 17.5 and the Notice Concerning Carriers' Limitation of Liability/Conditions of Carriage found on the reverse side of the issued Air Waybill, the terms detailed in this Article 17.5 shall prevail.

17.6 GENERAL

17.6.1 The Carrier is not liable for any Damage arising from its compliance with any laws or Government regulations, orders or requirements, or from failure of the Passenger to comply with the same.

17.6.2 If the weight of the Baggage is not recorded on the Baggage Check, it is presumed that the total weight of the Checked Baggage does not exceed the applicable free Baggage allowance for the class of service concerned as provided in the Carrier's Regulations. If, in the case of Checked Baggage, a higher value is declared pursuant to Article 9.7, the liability of the Carrier shall be limited to such higher declared value.

17.6.3 The Carrier's liability shall not exceed the amount of proven damages. The Carrier shall furthermore not be liable for indirect, consequential or remote Damage.

17.6.4 The Carrier is not liable for injury to a Passenger or for Damage to a Passenger's Baggage caused by property contained in such Passenger's Baggage. Any Passenger whose property causes injury to another person, or Damage to another person's property or to the property of the Carrier, shall indemnify the Carrier for all losses and expenses incurred by the Carrier as a result thereof.

17.6.5 The Carrier is not liable for any loss of, or Damage to, items that are not permitted to be carried as Checked Baggage, such as valuable, fragile or perishable items, including without limitation currency, jewellery, precious metals, silverware, negotiable papers, securities or other valuables, business documents, passports and other identification documents etc. which are included in the Passenger's Checked Baggage.

17.6.6 If a Passenger is carried whose age, or mental or physical condition, is such as to involve any hazard or risk to such Passenger, the Carrier shall not be liable for any illness, injury or disability, including death, attributable to such condition, or for the aggravation of such condition.

17.6.7 Any exclusion or limitation of liability of the Carrier shall apply to and be for the benefit of agents, employees and representatives of the Carrier and any person whose aircraft is used by the Carrier, and such person's agents, employees and representatives. The aggregate amount recoverable from the Carrier and from such agents, employees, representatives and persons shall not exceed the amount of the Carrier's limit of liability.

17.6.8 Unless so expressly provided, nothing herein contained shall waive any exclusion or limitation of liability of the Carrier under the Convention or applicable laws.

Article 18 – TIME LIMITATION ON CLAIMS AND ACTIONS

18.1 NOTICE OF CLAIMS

No action shall lie in the case of Damage to Checked Baggage unless the person entitled to delivery complains to the Carrier forthwith after the discovery of the Damage, and, at the latest, within seven (7) days from the date of receipt; and in the case of delay, unless the complaint is made at the latest within twenty-one (21) days from the date on which the Baggage has been placed at his or her disposal. Every complaint must be made in writing and dispatched within the times aforesaid. If no complaint is made within the time period specified above, no action shall lie against the Carrier, except in the case of fraud committed by the Carrier.

18.2 LIMITATION OF ACTIONS

Any right to damages shall be extinguished if an action is not brought within two years reckoned from the date of arrival at the destination, or from the date on which the aircraft ought to have arrived, or from the date on which the carriage stopped. The method of calculating the period of limitation shall be determined by the law of the court seized of the case.

18.3 JURISDICTION

18.3.1 An action for damages in respect of Baggage shall be brought, at the option of the claimant of damages, in the territory of one of the State Parties, either before the court of the domicile of the Carrier or of its principal place of business, or where it has a place of business through which the contract has been made, or before the court at the place of destination.

18.3.2 An action for damages in case of death may be brought in the above-mentioned courts or in the territory of a State Party in which, at the time of the accident, the Passenger has a Principal and Permanent Residence and to or from which the Carrier operates services for the carriage of Passengers by air, either on its own aircraft or on another carrier's aircraft pursuant to a Commercial Agreement, and in which the Carrier conducts its business of carriage of Passengers by air from premises leased or owned by the Carrier itself or by another carrier with which it has a Commercial Agreement.

18.3.3 In case of carriage by air performed by a carrier (i.e., the actual carrier) other than the contracting Carrier, an action for damages must be brought, at the option of the complainant, in the territory of one of the State Parties, either before a court in which an action may be brought against the contracting Carrier, or before the court having jurisdiction at the place where the actual carrier has its domicile or its principal place of business.

18.3.4 Save as otherwise provided by the Convention or other applicable law, these Conditions of Carriage and the Passenger's contract of carriage with the Carrier are governed by the laws of India. Passengers will be entitled to bring claims against the Carrier before the competent courts as permitted by law. However, in respect of claims relating to EU Regulation 261/2004 for which the Passenger fails to comply with the procedure set forth in Article 19 below, as well as in respect of non-consumer claims, the Passenger consents to the exclusive jurisdiction and venue of courts in New Delhi, India.

Article 19 – CLAIMS UNDER EU REGULATION 261/2004 AND UK REGULATION 261/2004

19.1 This Article 19 applies to claims under EU Regulation 261/2004 and UK Regulation 261/2004 (the “**Regulation**”).

19.2 Passengers are required to submit claims for compensation directly to the Carrier (via the claim form available on the Carrier’s website at <https://www.airindia.com/in/en/contact-us/customer-support-portal/feedback/flight-disruptions.html>) in the first instance. The Carrier will respond to the Passenger’s claim within (a) thirty (30) days; or (b) such time as prescribed by applicable law to respond directly to the claim. In the event the Carrier does not respond to the claim within the prescribed timeline, or the Passenger is not satisfied with the response received, such Passengers may engage third parties to claim or receive payment on their behalf. This Article must not be interpreted as prohibiting Passengers from obtaining legal advice before submitting their claims.

19.3 In cases of failure to comply with Article 19.2 (including applicable timelines):

- the Carrier will process such claims submitted by a third party only if the claim sets out the Passenger’s contact and payment information so as to enable the Carrier to make the payment to the Passenger directly, provided such claim is supported by documentation duly evidencing the authority granted by the Passenger in favour of such third party to act on their behalf; and
- the Carrier shall not be liable to bear any incidental charges, including but not limited to fees charged by such third parties and/or their lawyers, counsels or attorneys.

19.4 In the case of Passengers who do not have the capacity to submit claims themselves, such Passengers’ legal guardians may submit a claim to the Carrier as set out in Article 19.2 and receive the payment on such Passengers’ behalf, subject to submission of documentary evidence of authority to submit the claim and receive payment on the Passenger’s behalf to the Carrier.

19.5 A Passenger may submit a claim to the Carrier on behalf of other Passengers on the same booking/PNR and receive payment on behalf of such other Passengers. The Carrier may request evidence that the Passenger has the consent of the other Passengers on the booking to submit a claim and receive the payment on such other Passengers’ behalf.

19.6 Except as provided for by Article 19.3, Article 19.4 and Article 19.5, the Carrier will not process claims received from a third party unless such claim is supported by documentation duly evidencing the authority granted by the Passenger in favour of such third party to act on their behalf.

19.7 The Carrier will make payments to the bank account of the Passenger whose name is on the booking/PNR and who has submitted the claim, in accordance with the Carrier’s procedures, subject to Articles 19.2, 19.4 and 19.5. The Carrier may request evidence that the bank account is held by the Passenger concerned.

Article 20 – MODIFICATION AND WAIVER

No agent, employee or representative of the Carrier has authority to alter, modify or waive any provision of these Conditions of Carriage.